

Court No. - 21

Case :- WRIT - C No. - 30350 of 2007

Petitioner :- M/S. Mohan Electrocasting Pvt. Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, S.C.

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Learned counsel for the petitioners states that the panel lawyers of the Distribution Corporation has been changed.

Let notice of the present petition be served upon Shri Pranjal Malhotra, Advocate within one week.

List on 30.11.2021 showing the name of Shri Pranjal Malhotra as counsel for the respondents after deleting the names of all other counsels as are reflected in the cause list.

Order Date :- 9.11.2021

Saurabh

Court No. - 21

Case :- WRIT - C No. - 30350 of 2007

Petitioner :- M/S. Mohan Electrocasting Pvt. Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, C.S.C., Pranjali Mehrotra, S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

Adjourned to 10.2.2023 on request of counsel for the petitioner.

Order Date :- 27.1.2023

Bhaskar

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Court No. - 21

Case :- WRIT - C No. - 30350 of 2007

Petitioner :- M/S. Mohan Electrocasting Pvt. Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, C.S.C., Pranjal Mehrotra, S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

Learned counsel for the petitioners shall supply complete set of pleadings to Sri Pranjal Mehrotra, learned counsel for the respondent corporation within three days.

List on 27.2.2023.

Order Date :- 17.2.2023

Arif

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)

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Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, C.S.C., Pranjal Mehrotra, S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

On the illness slip of Shri Mayank Agrawal, learned counsel for the petitioner, the case is passed over.

List on 21st March, 2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 13.3.2023

Rama Kant

Court No. - 21

Case :- WRIT - C No. - 30350 of 2007

Petitioner :- M/S. Mohan Electrocasting Pvt. Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, C.S.C., Pranjal Mehrotra, S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

On the illness slip of Sri Mayank Agrawal, learned counsel for the petitioners, the case is passed over.

List on 12.04.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.3.2023

Shivangi

Court No. - 21

Case :- WRIT - C No. - 30350 of 2007

Petitioner :- M/S. Mohan Electrocasting Pvt. Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Counsel for Petitioner :- Mayank Agrawal, Seema Agrawal

Counsel for Respondent :- H.P. Dube, C.S.C., Pranjal Mehrotra, S.C.

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The instant petition has been filed praying for quashing of the recovery notice/bill dated 28.06.2007 to the extent of Rs. 5,91,700/- issued in pursuance of the reading taken from the check meter installed at the petitioners' premises. The submission of learned counsel for the petitioners is that under the relevant provisions of the U.P. Electricity Supply Code, the defective meter removed from the petitioners' premises should have been tested at a laboratory of the choice of the petitioners in an independent lab. It is further submitted that the alleged defective main meter was removed in absence of the petitioners, therefore, the bill raised on basis of the readings recorded in the check meter in comparison to the readings recorded in the alleged defective meter, cannot form basis for issuing the bill in question. In support of his submission, he places reliance of various decisions of this Court.

Shri Pranjal Mehrotra, counsel for the respondent-Electricity Department submits that since the petitioners are disputing the correctness of the electricity bill, therefore, they have remedy of filing objection against the same in terms of Clause 6.5 of the Electricity Supply Code, 2005 and in case, it is filed, it will be decided by respondent no. 2.

Having regard to the facts of the case and the submissions made, we permit the petitioners to file objection against the impugned bill before respondent no. 2 within two weeks from today along

with true attested copy of the instant order and in which event, respondent no. 2 will decide the same by means of a speaking order within next four weeks. The impugned bill will abide by the decision that would be taken by the respondent no. 2 on the objection of the petitioner. No further amount shall be recovered from the petitioner in pursuance of the impugned bill until the objections are decided.

The petition stands **disposed of** accordingly.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 12.4.2023
Rama Kant